

25STCV04225 25STCV04225

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-13

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Case Number: 25STCV04225 Hearing Date: August 13, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 1:44 PM on August 12, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 12, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiffs

allege that Defendant Lyft's driver, Defendant William Broyld made Plaintiff sit in the back seat, which was not locked in place and came loose when Defendant crashed into a curb high concrete divider on a ramp, which caused Plaintiff to fall to the floor where he remained until the ride ended.

Plaintiff suffered injuries.

Plaintiff Thomas Michael Dye moves

to compel verifications of responses to form interrogatories and responses to requests for production of documents propounded upon Defendant William Broyld.

Plaintiff also requests the imposition of sanctions.

TENTATIVE RULING

Conditioned upon Defendant provided

proof that verifications were served (since Defendant's opposition does not include evidence that the verification was served, and Plaintiff did not file a reply), Plaintiff Thomas Michael Dye's motions to

compel verifications of responses to form interrogatories and responses to requests for production of documents propounded upon Defendant William Broyld are

MOOT. Because unverified discovery responses are tantamount to no responses at all, and Defendant's verifications were long delayed at the time that these motions were filed, the motions were justified. Plaintiff's request for sanctions against Defendant and his counsel of

record is GRANTED^[1]

in the reduced amount of \$560 per motion (\$1,120 total for 2 total hours at \$500/hour plus \$120 in filing fees. Decl. of Ryne Osborne, ¶¶ 15 – 17.)

Sanctions are to be paid to Plaintiff's counsel within 20 days.

[1]

The

court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.

(Cal. Rules Court, Rule 3.1348(a).)